Seda

Napoli, 15-09-2025

To: Lavazza Spa

Object: Certificate of Compliance for Food Contact Materials
SPE Virgin Fibers Cup PE -5%
Rev.07of the DOC25- 0253

Modifica della Tab .1 :

- Inserimento 20001875-20001876-20001877
- Eliminazione 20001060-20001061-2000162

LPTS	Product		
5000	4OZ	20001679	LVZ 4 OZ SW TAKE AWAY CUP TRIMAN
5000	4OZ	20001750	1895 TAKE AWAY (4 oz)_SW
5001	8OZ	20001680	LVZ 8 OZ SW TAKE AWAY CUP TRIMAN
5001	8OZ	20001682	LVZ 8 OZ DW TAKE AWAY CUP TRIMAN
5001	8OZ	20005531	1895 TAKE AWAY_8 OZ_DW
5002	6OZ	20001678	LVZ 6 OZ TAKE AWAY CUP TRIMAN _VENDING_
5014	3OZ	20001684	LVZ 3 OZ SW TAKE AWAY CUP TRIMAN
5003	12OZ	20001681	LVZ 12 OZ SW TAKE AWAY CUP TRIMAN
5003	12OZ	20001683	LVZ 12 OZ DW TAKE AWAY CUP TRIMAN
5003	12OZ	20001875	LRDT 12 OZ SW TAKE AWAY CUP _PE<5%
5001	8OZ	20001876	LRDT 8 OZ SW TAKE AWAY CUP _PE<5%

5000	4OZ	20001877	LRDT 4 OZ SW TAKE AWAY CUP _PE<5%

Tab.1

We confirm that for the production of our foodstuffs cup the following statements apply:

1 Packaging material description: (from the outer side to the food contact side):

Cup

- Flexographic inks /[virgin fiber paperboard + extruded PE layer]
- Process: the inks are applied onto the outer side by flexographic technology,
- PE layer of the [paperboard + PE] substrate is extruded on paperboard, no lamination thus no adhesive is applied.

Only For DW cup :

Outer

- Flexographic inks/virgin fibres paperboard

The outer layer is external and not in direct contact with foodstuffs

2 Intended food contact

- Type of food: all kind of foodstuffs(A,B,D2)
- Contact condition:

- OM2: Any long term storage at room temperature or below, including when packaged under hot-fill conditions, and/ or heating up to a temperature T where 70 °C ≤ T ≤ 100 °C for a maximum of t = 120/2^((T-70)/10) minutes.
- OM3 Any contact conditions that include heating up to 70 °C for up to 2 hours, or up to 100 °C for up to 15 minutes, which are not followed by long term room or refrigerated temperature storage.

- Side intended to go in contact with foodstuffs: PE (Polyethylene)

3 Legal compliance- on amendments to date

- Product complies with the Regulation 1935/2004/EC, article 3, 11(5), 15 and 17
- Product complies with EC Regulation 10/2011 and related Annex II and related amendments with special reference to plastic layer extruded.
- Product complies with Italian DM 21.03.73 and following amendments.
- Product complies with EU Directive 94/62, art.11.

- Paperboard complies with German BfR recommendation XXXVI 2024 and following amendments.
- The paperboard complies with Danish Order no 681 of 25 May 2020,
- As stated by our raw material supplier, the PE coated paperboard types used, comply with the Federal Food, Drug and Cosmetic Act and applicable food additive regulations for use in contact with food types I, II, III, IV A-B, V, VII A-B, VIII and IX under conditions of use C through G and with food types VI A-C under conditions of use D through G as described in tables 1 and 2 of 21 C.F.R. §176.170.
  The paperboard used to manufacture the ring is suitable for dry, moist and fatty foodstuffs according to 21 C.F.R. §176.170. The composition of PE extruded on this paperboard complies with 21 C.F.R. §177.1520 "Olefin Polymers" (a)(2)(i), (b) and (c) 2.1
- Printing inks comply with the EuPIA Exclusion List. The inks are also formulated and manufactured in accordance with the "Guidelines for printing EuPIA external food packaging"(2022).
- Printing inks comply with Swiss Ordinance on Materials and Articles in Contact with Food (SR 817.023.21
- Seda Italy products are manufactured in compliance with the European Regulation 2023/2006/EEC "*on good manufacturing practice for materials and articles intended to come into contact with food*".
- The final product complies with Loi 1442/2012
- The paperboard support complies with *MCDA sheet n°4 (V02 – 01/01/2019)*

3.1 Statement on Genotoxic Substances, according to EU Reg. 1245/2020

Regulation (EU) 2020/1245 requires a communication within the supply chain of possible genotoxic substances, if it cannot be ruled out that a migration of more than 0.00015 mg/kg food or food simulant is expected from the final material.
Based on the information received from our raw material suppliers and the knowledge of our production process, we confirm that no potential genotoxic substance, not authorized in any positive list of European or National legislation, is intentionally used to manufacture the final article.

3.2 Statement on bisphenols according to (EU)Reg. 3190/24

As stated by our raw materials suppliers' and by the knowledge of our manufacturing process, we confirm that BPA and its salts are not intentionally used* in the products manufactured by Seda IT. These traces are below the set migration limits generally applied on paper and cardboard.All Seda products comply with EU Reg. 1935/2004 and are manufactured according to the European Regulation 2023/2006/EEC "on good manufacturing practice for materials and articles intended to come into contact with food.

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* *Intentionally used shall mean deliberately utilized in the formulation of a material or component where its continued presence is desired in the final product to provide a specific characteristics, appearance or quality. Please note that this information is based on the information gained from our suppliers.*

4 Packaging Substances List

Substances used in the barrier do not contain substances with specific migration limit (SML) according to Commission Regulation (EU) 10/2011.

The list of dual use substances that could be present in the packaging are following listed:

Dual Use (as per EC Reg. 1129/2011, 1333/2008, 1334/2008)

PM/Ref. N° - E N°	Substance name
FL 02.082	Ethylhexanol
E 321	2,6-Di-tert.-butyl-p-cresol
E 422	Glycerol
E 1520	Propylene Glycol
E 914	Polyethylene waxes oxidized
E900	dimethylpolysiloxane
E570	stearic acid
E1520	Propylene glycol
E1521	Polyethyleneglycole
E251	Sodium nitrate
E514	Sodium sulphate
E565	Sodium lignosulfonate
E330	Citric acid
E355	Adipic acid
E493	Sorbitan laurate
E514	Sodium sulphate
E517	Ammonium sulphate
E520	Aluminum sulphate
E524	Sodium hydroxide
E236	Formic acid
E513	Sulphuric acid

E1404	Starch
E511	Magnesium chloride
E551	Silicon Dioxide

The list of other monomers/additives which may be present in the other packaging materials cannot be disclosed since is covered by confidentiality agreement between Seda and its suppliers.
These information are provided to the best of our knowledge, based on our suppliers' declaration and the knowledge of our manufacturing processes.

5 Food Safety Testing

All the food safety analysis have been performed on similar items representative of the product supplied (made of same raw materials and manufactured using same process).
The testing protocol was designed on the basis of declaration of our raw material suppliers', our manufacturing process and final food application.
Since the PE is not a total functional barrier to prevent the migration of all kinds of substances, food safety analysis have been performed in order to demonstrate that the migration level of substances comes from the whole packaging, including the inks and varnish applied on external side, is always below the applicable legal limits.
Based on the results provided by overall migration (sect. 5.1) and NIAS screening (5.2), we confirm that the migration level such substances is always below the applicable legal limits.

5.1 - Overall migration and specific migration:

The overall and specific migration analysis have been performed according to EN 1186-5 and Italian D.M. 21/3/73 and following amendments, on representative samples on the finished product, in simulant A, (ethanol 10%), B (acetic acid 3%) and D2 (vegetal oil or ethanol 95% + isooctane)*.

The analysis have shown that the specific migration of the searched substances is below the law limit, according to limit set in the EU Reg. 10/2011. The compliance computations have been arranged assuming that 1kg of food comes in contact with 10 dm^2 of packaging material
The overall migration limit (10 mg/dm2 or 60 mg/kg) stipulated in the Commission Regulation (EU) 10/2011 is not exceeded.

Test conditions: the migration test was carried out by putting the food contact side in direct contact with the simulant under the following conditions:

- contact time = 10 Days /Temperature=40°C – **OM2**
- contact time = 2h /Temperature=70°C – **OM3**

The overall migration result is below the law limit, according to EC Regulation 10/2011.
Surface/volume ratio test: 0,98 dm^2/0,8 dL,1

* *The migration in isooctane at 20°C for 2 days and the migration in ethanol at 95% at 40°C for 10 days are the substitute tests for migration in rectified olive oil at 40°C for 10 days according to the conventional conditions reported in Table 4 of Decree n° 338 of 22/07/1998 (updating to the Ministerial Decree 21/03/73).*

5.2 NIAS screening

Identification of volatile and semi-volatile compounds come from packaging materials have been evaluated by GC-MS submitted the sample to static headspace in vials and put the sample in contact with organic solvent.
The analysis allows to investigate the toxicological risk due to the volatile and semi-volatile substances on surface intended for contact with food. The quantification is performed using a mixture of substances represented by the various chemical classes of volatile and semi-volatile molecules.
The identification of the substances is performed by comparing the mass spectrum with database, finding level of correspondence with the reference mass spectrum. It's considered a good correspondence when the match is higher than 90% and a not significant correspondence when it is lower than 80%.
The number of organic substances that can be detected in this research is relevant, considering also the presence of more isomers, therefore only a small part of them can be found in mass spectrum libraries. For this reason, it is often impossible to associate each spectrum to a similar or very likely library attribution.
From the performed analysis on similar structure, no significant identified peaks have been detected.
The product complies with requirements of EU Reg. 1935/2004 set in the article 3. The results have been related to S/V max = 10 (dm2/Kg)

5.3 - Heavy metals

According to limit set in the EU Directive 94/62 (art.11), the sum of the concentration levels of Cadmium (Cd), Mercury (Hg), Lead (Pb), and Hexavalent Chromium (Cr+6) is <100mg/kg.

5.4 - Olfactory Organoleptic test according to UNI EN 10192:2000

The average scores obtained from the test are ≤ 2.5 value*.

**the sample is recognized to have a potential impact on the product if the average score is higher than 2.5.*

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5.5 Not intentionally use substances

- PFAs (PFOA PFOS)
- BPA
- Phtalates,

Seda Italy does not intentionally use these substances during production process. Moreover, we confirm that, as per raw materials suppliers' statement, these substances are not intentionally used in raw materials production processes. This includes paperboard (plastic or not plastic coated), inks, varnished.

6.1.Mineral oil Seda Group position statement

Background

Mineral oils encompass a wide range of mixtures of hydrocarbons.
Highly purified mineral oils and paraffins have been used in cosmetic or medical applications for decades and for food and food contact applications as well. They are approved and supported by adequate toxicological data. Thus, mineral oils are part of our daily life and an accurate differentiation in their toxicological evaluation should be the key in every discussion.

EFSA opinion defines mineral oil hydrocarbons (MOH) or mineral oil products as: "*hydrocarbons containing 10 to about 50 carbon atoms, where the crude mineral oils remain by far the predominant source of the MOH considered, but equivalent products can be synthesized from coal, natural gas or biomass*."
This definition includes all the various refinery grades and also substances which are evaluated as non-hazardous or not harmful to humans or the environment.

EFSA divides MOH into two main groups:

- MOSH (Mineral oil saturated hydrocarbons), which comprise linear and branched alkanes, and alkyl-substituted cyclo-alkanes.
- MOAH (Mineral oil aromatic hydrocarbons), which comprise mainly alkyl-substituted polyaromatic hydrocarbons.

However, even this categorization is imprecise due to a lack of a precise definition, in fact MOSH and MOAH fractions are mainly determined by the results derived through the commonly used analytical method. Because of their complexity, it is not possible to resolve MOH mixtures into individual components for quantification.
Some MOH have been assessed by EFSA. The restriction and specification can be found in the Plastics Regulation (EU) No. 10/2011, under FCM 93, 94, 95 and 97.

Source: http://www.efsa.europa.eu/en/efsajournal/doc/2704.pdf

1. Seda Group Position Statement on mineral oils

Products supplied to your Company by Seda are made from raw materials manufactured without the intentional use of MOAH nor MOSH for which there is no reassuring toxicological assessment.
Seda manufacturing process does not foresee the intentional use of mineral oils with the exception of paper cups and tubs forming process where a food grade white mineral oil lubricant is used in very small quantities. The lubricant complies with the following requirements:

- Europe Regulation (EU) 10/2011 on plastic material and articles intended to come into contact with foodstuff, White mineral oil
- National Sanitation Foundation (NSF), category H1, registration number 125039
- USA FDA, 21 CFR 178.3620(a), White Mineral Oil
- US Pharmacopoeia, most recent edition, Mineral Oil
- Colipa Reccomendation nr. 14 on *mineral hydrocarbons for use in cosmetic lip care products*
- Purity requirements of European Pharmacopoeia, most recent edition, Liquid Paraffin

Furthermore, we can confirm that no MOAH is intentionally used on any material and/or process in the product supplied.

2. Testing

Identification of mineral oils, according to JRC Technical reports Recommendations (EU) 2017/84 "*Guidance on sampling, analysis and data reporting for the monitoring of mineral oil hydrocarbons in food and food contact materials*", have been performed by external

accredited laboratory to check and measure the contents of mineral oils in the final article.

The analysis, performed on representative samples, have shown also that no MOAH is present in the final article above the Limit of Quantification (LoQ) of applied method (LoQ MOAH: 3 mg/kg product)

Analysis Results

MOAH (10<nC<16) < LoQ

MOAH (16<nC<25) < LoQ

MOAH (25<nC<35) < LoQ

MOAH (35<nC<50) < LoQ

Please find here below the threshold suggested in the recent opinion of European Commission:

In order to ensure a uniform enforcement approach throughout the EU, the Member States agreed to withdraw and, if necessary, to recall products from the market, when the sum of the concentrations of MOAH in food are at or above the following maximum LOQs:

- *0.5 mg/kg for dry foods with a low fat/oil content (≤ 4% fat/oil)*
- *1 mg/kg for foods with a higher fat/oil content (> 4% fat/oil)*
- *2 mg/kg for fats/ oils*

Analysis and sampling should be done according to the provisions of Regulation (EC) No 333/2007.

Our internal assessment, based on theoretical calculation and analytical evaluation , confirms that our products are comply with the above migration limits.

6 General

By observing the above regulations, we have fulfilled our duty of care regarding the compliance of the product we supply.

The product is intended for non-alcoholic foodstuffs use, it is the responsibility of the user to verify its suitability for his own intended food application.
This letter is intended for your company only and replaces any previous Certificates of Compliance.
It is valid only when signed by us. After a break in delivery lasting more than 12 months, this letter ceases to be valid for new deliveries of the relevant product.
This statement applies only to above identified products and is based on available data, which may include but is not limited to, supplier compliance statements, product composition, product analysis of similar items and our use of good manufacturing practices.
The Customer is responsible for the product safety, lawfulness (except as provided specifically in this Declaration) and technical suitability for its intended application use. Any non-conforming use of this product is outside the scope of this Declaration. The guarantees of use are expressly indicated in this document

Lucio Vignes
Q.A. Director